

26STCV01633 26STCV01633

County: los-angeles

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Case Number: 26STCV01633 Hearing Date: July 15, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 15, 2026

Case Name: Lee v. Ko, et al.

Case

No.: 26STCV01633

Matter: Motion for Leave to File an Anti-SLAPP

Moving

Party: Defendants David Ko, Audrey

Ko, Eden Home Care, Inc., and Eden Hospice Care, Inc.

Responding Party: Plaintiff Young-Jik Lee

Tentative

Ruling: Defendants David Ko, Audrey

Ko, Eden Home Care, Inc., and Eden Hospice Care, Inc.'s motion is denied.

Plaintiff

Young-Jik Lee ("Plaintiff") filed this action against Defendants 1818

Western,

LLC, David Ko ("Ko"), Audrey Ko, Eden Home Care, Inc., and Eden

Hospice

Care, Inc., and Does 1 to 100. The Complaint alleges 15 causes of action for:

(1) breach

of

contract; (2) breach of fiduciary duty; (3) fraudulent concealment; (4)

violation of California

Corporate

Code section 17704.10; (5) declaratory relief; (6) derivative claim for breach

of

fiduciary

duty; (7) derivative claim for conspiracy to commit breach of fiduciary duty;

(8)

derivative

claim for aiding and abetting breach of fiduciary duty; (9) derivative claim

for

fraudulent

concealment; (10) derivative claim for conspiracy to commit fraud; (11)

derivative

claim

for aiding and abetting fraud; (12) derivative claim for violation of

California Penal Code

section

496; (13) derivative claim for violation of the California Business and

Professions Code

section

17200; (14) derivative claim for judicial expulsion of member under California

Corporations

Code section 17706.02, subdivision (e); and (15) direct and derivative claim

for

appointment

of a receiver under California Civil Procedure Code section 564.

Defendants Ko,

Audrey Ko, Eden Home Care, Inc., and Eden Hospice Care, Inc. (collectively “Defendants”) move for leave to file an Anti-SLAPP motion past the statutory sixty days. Plaintiff opposes.

Legal Standard

Code

of Civil Procedure section 425.16, subdivision (f), states that “[t]he special motion may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper. The motion shall be scheduled by the clerk of the court for a hearing not more than 30 days after the service of the motion unless the docket conditions of the court require a later hearing.” (Code Civ. Proc., § 425.16, subd. (f).)

“[A] trial

court must be wary about freely granting a party the right to file an anti-SLAPP motion past the 60–day deadline.” (Platypus Wear, Inc. v. Goldberg (2008) 166 Cal.App.4th 772, 787.) “The overall purpose of the SLAPP statute is to provide defendants with a procedural remedy “which would allow prompt exposure and dismissal of SLAPP suits.” The 60 day period in which a defendant may file a SLAPP motion as a matter of right appears to be intended to permit the defendant to test the foundation of the plaintiff’s action before having to “devote its time, energy and resources to combating” a “meritless” lawsuit.” (Morin v. Rosenthal (2004) 122 Cal.App.4th 673, 681, as modified on denial of reh’g (Oct. 15, 2004) (Morin).)

Analysis

Defendants

argue that leave should be granted because: (1) the case remains in its earliest stages and no trial date has been set; (2) the challenged claims arise from communications required by federal regulations to government regulatory agencies, constituting protected petitioning activity; (3) Defendants had compelling reasons for not filing within sixty days, including the need to address the existential threat to the Company’s solvency and the recent association of new counsel; and (4) Dr. Lee will not be prejudiced by

permitting Movants to file the anti-SLAPP Motion at this time. (Not., 2:12-19.)

“Discretion

to permit or deny an untimely motion cannot turn on the final determination of the merits of the motion.” (Olsen, *supra*, 134 Cal.App.4th at p. 286.) “In determining whether to permit a late motion, the most important consideration is whether the filing advances the anti-SLAPP statute’s purpose of examining the merits of covered lawsuits in the early stages of the proceedings. ([Citation.]) Other relevant factors include the length of the delay, the reasons for the late filing, and any undue prejudice to the plaintiff.” (San Diegans for Open Government v. Har Construction, Inc. (2015) 240 Cal.App.4th 611, 624.)

Defendants

argue that they are entitled to leave to file an Anti-SLAPP past the 60 days of service from the Complaint. The Court is not persuaded by Defendants’ arguments. While Defendants repeatedly argue that this case is in its early stages, the number of motions and appearances before the Court demonstrates the opposite. Both parties have heavily prosecuted and defended the present action and cross-action.

Here,

Defendants have filed an answer, a demurrer, and several ex parte applications. Defendants chose to “devote their time, energy and resources” to defend their case. (Morin, *supra*, 122 Cal.App.4th at p. 681.) Ko has filed a motion for a preliminary injunction, which the Court denied. Defendants also filed a Cross-Complaint and a First Amended Cross-Complaint. Moreover, Defendants have served responses to propounded discovery. (Clements Decl., ¶ 6.) The Court also notes that there is an Informal Discovery Conference and six motions to compel further discovery responses scheduled for later this month, and a motion for a protective order scheduled for September. Thus, granting leave beyond the 60-day period would not advance the purpose of Code of Civil Procedure section 425.16. The Court finds that Defendants made a strategic choice not to exercise their right to file an anti-SLAPP within the first 60 days.

Defendants

also argue that they needed to hire new counsel, as a reason for their delay. Defendants were served with the Complaint on January 20, 2026, and new counsel was brought into this case on May 5, 2026. The Courts have determined that “[a] claim of excuse from untimeliness based on late discovery after obtaining new counsel is generally unavailing.” (Olsen, *supra*, 134 Cal.App.4th at p. 285; Platypus Wear, Inc. v. Goldberg

(2008) 166 Cal.App.4th 772, 786.) Defendants have been represented throughout this action, and their former counsel had an opportunity to file their motion before the 60 days elapsed. Thus, the Court finds that there is no basis for the Court to exercise its discretion to grant Defendants' motion.

Therefore, Defendants' motion for leave to file an anti-SLAPP is denied.

Conclusion

Defendants David

Ko, Audrey Ko, Eden Home Care, Inc., and Eden Hospice Care, Inc.'s motion is denied.